

		interest, is DENIED as inadequately substantiated. (Code Civ. Proc., § 482.040 [facts in supporting affidavit “shall be set forth with particularity”].) The court also observes that plaintiff’s attorney fee request relies on an attorney fee provision in the “Business Associate Agreement” providing for attorney fees in the event of a “breach of ... obligations under this Agreement.” (Makridis Decl., ¶ 32; Ex. B, thereto, Section 6.1.) However, that agreement applies to the use and disclosure of “Protected Health Information,” not the unpaid services at issue here, which the evidence shows is the subject of a separate implied-in-fact agreement, as noted above. Moving party to give notice.
9	Sanchez vs. Martinez 2025-01463096	Motion for Determination of Good Faith Settlement Continued to September 24, 2026 at 8:30 a.m. in Department C44.
10	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion to Enforce Settlement Motion for Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion to Enforce Settlement Agreement is DENIED. Moving Defendant has failed to show “a writing signed by the parties outside of the presence of the court” or an oral stipulation made before the court for settlement of the case. (Code Civ. Proc. §664.6, subd. (a).) Defendant USAA Casualty Insurance Company’s Motion for a determination of good faith settlement is DENIED because Moving Defendant has failed to establish that Plaintiff has agreed to settle her claim against Moving Defendant. Moving Defendant asserts that Plaintiff has entered into a binding agreement to settle her dispute with Moving Defendant based upon (1) a statement in an email from Plaintiff’s counsel that Plaintiff “will” agree to settle the claim and requesting Defendant to prepare a settlement agreement for her consideration and (2) a statement made by Plaintiff’s counsel at the hearing on the OSC re: sanctions for Defendant’s counsel’s failure to appear that Plaintiff had settled her claims against Moving Defendant. This is not sufficient to meet the requirements of Code Civ. Proc. §664.6, subd. (a). There is no written stipulation signed by Plaintiff or her counsel that indicates a stipulation to settle Plaintiff’s claims